

Consols standing in his name) says to B., 'I give you the £1000 Consols standing in my name,' that in my opinion would make A. a trustee for B. It would be a valid declaration of trust for B., though the stock remained in the name of A." (b).

[So where a husband by a deed poll, after reciting that he was beneficially possessed of the ground-rents thereby agreed to be settled, "settled, assigned, transferred and set over unto his wife as though she were a single woman," certain leasehold houses and the ground-rents thereof, it was held that the deed was not void as being an intended assignment, but operated as a declaration of trust (c). So where a husband by deed assigned leaseholds to his "wife, her executors, administrators, and assigns, as her separate estate," it was held that the deed operated as a valid declaration

*of trust (a). But these cases have since been disproved of by V. C. Hall, who held that the principle laid down in *Milroy v. Lord* (b) applies equally to an imperfect gift from husband to wife as to a gift to a stranger, and that such a gift cannot be supported as a declaration of trust (c); and this view has since been adopted in *Ireland* (d).

(b) *Grant v. Grant*, 34 Beav. 623.
As to the general dictum of M. R. see also *Morgan v. Malleon*, 10 L. R. Eq. 475; but see contra *Warriner v. Rogers*, 16 L. R. Eq. 349.

[(c) *Baddeley v. Baddeley*, 9 Ch. D. 113.]

[(a) *Fox v. Hawks*, 13 Ch. D. 822.]

[(b) See *post*, p. 74.]

[(c) *Re Breton's Estate*, 17 Ch. D. 416; and see *Re Whittaker*, 21 Ch. D. 657, 666.]

[(d) *Hayes v. Alliance Assurance Company*, 8 L. R. Ir. 149.]

hast v. Wheaton, 8 R. I. 536; 5 Am. Rep. 621; if one receives a gift *causa mortis* in trust, and neither the beneficiaries nor the proportions to each are clearly expressed, the trust fails; *Sheedy v. Roach*, 124 Mass. 472; 26 Am. Rep. 680; *Warner v. Bates*, 98 Mass. 274; *Hess v. Singler*, 114 Mass. 56; for other cases on the subject of deposits, see *Stone v. Bishop*, 4 Cliff. 593; *Shaw v. Hayward*, 7 Cush. 170; *Taylor v. Henry*, 48 Md. 550; *Maynard v. Maynard*, 10 Mass. 456; *Wilcox v. Matteson*, 53 Wis. 23; *Meriwether v. Morrison*, 78 Ky. 572; *Ellis v. Secor*, 31 Mich. 185; 18 Am. Rep. 178; *Pope v. Bank*, 56 Vt. 284; 48 Am. Rep. 781.

Deed under Voluntary Settlement.—If executed in due form it will be binding on the settlor, though he retain it in his possession; *Urann v. Coates*, 109 Mass. 581; *Bunn v. Winthrop*, 1 Johns. Ch. 329; unless it appears that such was not his intention; *Otis v. Beckwith*, 49 Ill. 121. If the trust has been perfectly created, it matters not if the deed is lost, or revoked, or the property